

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201701493	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 02/25/2017 12:30 AM	Location of Incident: West 142nd Street and 7th Avenue	18 Mo. SOL 8/25/2018	Precinct: 32
Date/Time CV Reported Sat, 02/25/2017 6:28 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 02/25/2017 6:28 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Sajma Hot	05372	960681	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Sajma Hot § 87(4-b) § 87(2)(g)	Abuse: Police Officer Sajma Hot stopped § 87(2)(b)	A . Unsubstantiated
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On February 25, 2017, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System, on behalf of her son, § 87(2)(b). § 87(2)(b) was not witness to this incident.

On February 25, 2017, at approximately 12:30 AM, § 87(2)(b) was walking on 7th Avenue in the vicinity of West 142nd Street. § 87(2)(b) had just exited a deli, and was carrying a black plastic bag containing a non-alcoholic beverage. PO Hot pulled over, exited her vehicle, approached § 87(2)(b) and asked if he was drinking alcohol. As PO Hot spoke to § 87(2)(b) she was allegedly carrying her handcuffs in her hand (**Allegation A**).

§ 87(2)(g), § 87(4-b)

At approximately 5:45 PM, § 87(2)(b) observed PO Hot inside of Polanco Restaurant. This interaction was captured on security camera footage (**07 Board Review**). The video does not capture any of the FADO allegations.

No arrests were made or summonses issued as a result of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- On March 28, 2017, a Notice of Claim Inquiry returned negative results from the NYC Comptroller's Office (**04 Board Review**).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (**06 Board Review**).
- PO Hot has been a member of service for one year, and has no previous allegations.

Findings and Recommendations

Allegation A –Abuse of Authority: PO Sajma Hot stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was crossing 7th Avenue, holding a bag containing a nonalcoholic beverage, that PO Hot asked him if he was drinking, and that he voluntarily displayed the contents of the bag without being asked to do so. § 87(2)(g)

§ 87(2)(b) stated that the beverage was a sealed can of orange soda in a black plastic bag. He was not holding the bag so that the can was right side up at all times. When PO Hot was speaking to him, she was holding her handcuffs in her hand (**01 Board Review**).

PO Hot stated that she was in the area in response to a condition of public drinking and open containers. PO Hot did not remember specifically what kind of beverage § 87(2)(b) had, but stated that it was a glass bottle with a long neck, and resembled a bottle of Corona. The bottle was in a brown paper bag or a black plastic bag and § 87(2)(b) held it at a 90 degree angle. PO Hot was not holding her handcuffs in her hand while speaking to § 87(2)(b) **(02 Board Review)**.

People v. De Bour, 40 N.Y.2d 201 (1976) allows officers to stop individuals whom they reasonably suspect are engaging in, have engaged in, or are about to engage in acts of criminality **(03 Board Review)**.

People v. Ocasio, 85 N.Y.2d 982, 652 (1995) The test for determining whether the actions of law enforcement officers constitute a seizure is whether a reasonable person would have believed, under the circumstances, that the officer's conduct limited their freedom to leave **(11 Board Review)**.

United States v. Singletary, 798 F.3d 55 (2015) states that reasonable suspicion can arise even when an individual's behavior is equally as innocuous as guilty as long as there is some indication of possible illicit activity, and that reasonable suspicion justifies a brief investigatory stop. Additionally, an observation of an individual holding a brown paper bag containing a single beverage in such a way to avoid spillage provides an officer with reasonable suspicion that an individual is in violation of the open container laws **(09 Board Review)**.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Squad: 12

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date